

Authority for Personal Data
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The Minister of Social Affairs and Employment
P.O. Box 90801
2509 LV THE HAGUE
Date

June 4, 2024

Our reference

2024-010050

Your letter dated

March 28, 2024

Your reference

2024-0000079346

Subject

Legislative assessment draft for the Consolidation Act SZW 2025

Dear Ms. van Gennip,

In your letter dated March 28, 2024, the Authority for Personal Data (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft amendment of several laws, particularly from the Ministry of Social Affairs and Employment, in connection with various technical and minor policy changes (hereinafter: the draft).

The assessment is limited to Article IV, part E, of the draft.

The AP has comments on the draft.

Purpose of the draft

In the case of workplace accidents that result in permanent injury, hospitalization, or death, employers are subject to a notification and reporting obligation. The draft aims to create a legal basis for an exception to the prohibition on processing special personal data. Furthermore, the draft establishes a confidentiality obligation by applying a provision from the Implementation Act of the General Data Protection Regulation (UAVG).¹

The purpose of the notification and reporting obligation is to enable the Labor Inspectorate to conduct a proper accident investigation.² Following this investigation, the Labor Inspectorate may intervene if necessary to prevent recurrence or danger to other employees.³

¹ Article 30, fourth paragraph, second sentence UAVG.

² Explanatory memorandum to the draft, par. 2.3, paragraph 6.

³ Parliamentary documents II 1997/98, 25879, no. 3, p. 30.

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Legislative Assessment

Insufficient substantiation of necessity and delimitation of health data

According to the explanatory memorandum, the processing of health data is unavoidable in order to comply with both the notification obligation and the reporting obligation under Article 9, first paragraph, of the Working Conditions Act.⁴ The text of the law distinguishes between the notification obligation and the reporting obligation. Employers must report voluntarily, also for the purpose of registration.⁵

The obligation to report only exists if the supervisor requests it.⁶ It is likely that the notification and reporting obligations serve different purposes; the notification obligation serves, in addition to registration, to enable the Labor Inspectorate to assess whether further investigation is warranted. The reporting obligation pertains to a broader obligation to provide information about the workplace accident upon request, in the interest of the investigation itself. It cannot be assumed in advance that the same health data is necessary for both purposes.

The necessity to request health data is only briefly substantiated in the explanatory memorandum; it states that such data would be “essential [for the supervisor] to conduct a proper accident investigation.”⁷ In particular, it is not clear whether the data necessary for the investigation is also required for compliance with the notification obligation. The data set intended to fall under the application of the draft is therefore insufficiently delineated.

The AP concludes that the explanatory memorandum is not sufficiently clear regarding the relevance of the distinction between the (purposes of the) notification obligation and the reporting obligation for the necessity to provide health data, indicating that further clarification in regulations and explanations is warranted.

Workload AP

The AP notes that the draft is not expected to necessitate additional efforts by the AP.

Publication

This legislative assessment will be published on the AP's website within two weeks.

Sincerely,

Authority for Personal Data,

Aleid Wolfsen

Chairman

4 Explanatory memorandum to the draft, par. 2.3, paragraph 5.

5 Article 9, second paragraph, Working Conditions Act.

6 Article 9, first paragraph, Working Conditions Act.

7 Explanatory memorandum to the draft, par. 2.3, paragraph 6.

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- Annex

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Assessment Framework AP

The AP examines whether the draft regarding the processing of personal data is in accordance with the Charter of Fundamental Rights of the European Union (EU), the GDPR (Regulation 2016/679), or the Police and Justice Directive (Directive 2016/680), the general legal principles of the EU, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

1. the draft being suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (suitability);
2. the objective cannot reasonably be achieved as effectively by other means that are less intrusive to the fundamental rights of the data subjects (subsidiarity);
3. the interference is not disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (proportionality);
4. the draft is sufficiently clear and precise regarding the scope and is predictable in its application (legal certainty);
5. the draft sufficiently indicates under what circumstances and conditions personal data may be

processed, thereby ensuring that the interference is limited to what is strictly necessary (substantive and procedural safeguards); and

6. the draft is binding under national law (bindingness under national law).

The AP pays particular attention to the rights of data subjects and the conformity of the draft with Article 6, paragraphs 1 and 3, and Article 9 of the GDPR (Regulation 2016/679), or Articles 8 and 10 of the Police and Justice Directive (Directive 2016/680), and with the principles established in Article 5 of the GDPR or Article 4 of the Directive. This implies, among other things, that:

(a) processing must be lawful, fair, and transparent in relation to the data subject;

(b) personal data may only be collected for specified, explicitly defined, and legitimate purposes; and

(c) processing must be adequate, relevant, and limited to what is necessary for the purposes.

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